THE 'TOUGH ON CRIME' REGIME

- 'Operation Langda', 'half encounter', 'short encounter'...the name changes from state to state but not the crime deterrence brief
- Uttar Pradesh has averaged five encounters a day and one encounter killing every 12 days since 2017 when the BJP came to power
- A common political response to the criticism on 'half encounters' is that the courts are too slow to act. Hence, 'instant justice'

THE COURTS TAKE NOTE

- A 2014 SC ruling says the State can't violate the right to life under Article 21; self-defence plea not enough to close firing death cases
- The same ruling sets 16 mandatory guidelines to justify 'fatal encounter' cases; includes FIR, probe by independent agency, magisterial inquiry, etc.
- In 2019, the SC, and in 2026, the Allahabad HC, highlight UP police's 'excesses'. HC says encounters now routine, officers firing to please seniors
- A bullet in the leg does not automatically trigger an inquiry. This is the gap in the legal system that the 'half encounter' exploits

encounter guidelines sit alongside that judgment, but they too addressed only fatal encounters. A bullet in the leg, by contrast, does not automatically trigger an inquiry. That is the legal gap the 'half encounter' exploits.

The reason why such tactics are flourishing, as Patna-based civil rights lawyer K.D. Mishra points out, is because "a government under pressure to show it is doing something has discovered that a bullet is faster than a trial". The September 19 incident in Jamui, demanded instant justice, the state delivered it. It took only three days for the police to locate and disable the prime accused. The state had done enough to douse public anger. But justice demands more than that. It needs the accused to be identified, evidence collected, witnesses examined. It needs the prosecution to establish its case, and the punishment given only after guilt is established.

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> **S.R. DARAPURI**
> *Former Inspector General of Police, UP*



LIMPING REALITIES

The issue has repeatedly drawn judicial scrutiny. In January 2019, the SC again expressed serious reservations after a series of encounter killings in UP were brought to its notice. Opposition parties have long accused the Yogi government of following a "*thok do* (shoot them)" policy. The most recent intervention came from the Allahabad High Court. On January 28, 2026, while hearing bail pleas filed by three men who had been crippled before being arrested in separate cases in Muzaffarnagar, Jhansi and Mirzapur, Justice A.K. Singh Deshwal observed that such encounters had become a routine feature in the state. In a damaging indictment, the court observed that in some cases officers seem to be resorting to firing to please their seniors or teach the accused persons a lesson.

The UP chief minister, meanwhile, has vociferously defended the encounters. His claim is that the state has seen no riots or extortion by goons since he took over. In the other states, the more common political response to the criticism is that the courts are too slow to act. That part is true, the backlog is real. In a written reply to the Rajya Sabha on August 13, Union law minister Arjun Ram Meghwal cited the National Judicial Data Grid to claim that nearly 3.8 million cases were pending in Bihar's district and subordinate courts, 85.5 percent (3.2 million) of them criminal. Some 2.1 million of these cases have been pending for more than five years. The comparable five-year pile in MP was 382,500.

Former UP Police inspector-general (IG) S.R. Darapuri believes the scale and pattern of the encounters raise questions about whether they are being carried out as part of state policy. "When the chief minister (of UP) himself says criminals will be taught a lesson, it raises the question of what signal that sends to the police. It creates the impression that such encounters have the backing of the state," he says.

For the moment, therefore, the 'half encounter' remains a favoured tactic for the police to demonstrate their resolve. That it also appears to satisfy the public's appetite for instant justice is perhaps an added bonus in their eyes. ■